RESOLUTION MSC.240(83) Adopted on 12 October 2007
AMENDMENTS TO THE PROTOCOL OF 1988 RELATING TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974, AS AMENDED

RESOLUTION MSC.240(83)

Adopted on 12 October 2007

AMENDMENTS TO THE PROTOCOL OF 1988 RELATING TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974, AS AMENDED

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

RECALLING FURTHER article VI II(b) of the International Convention for the Safety of Life at Sea (SOLAS), 1974 (hereina fter referred to as the Convention) and article VI of the Protocol of 1988 relating to the Convention (her einafter referred to as the 1988 SOLAS Protocol) concerning the procedure for amending the 1988 SOLAS Protocol,

HAVING CONSIDERED, at its eighty-third session, amendments to the 1988 SOLAS Protocol proposed and circulated in accordance with article VIII(b)(i) of the Convention and article VI of the 1988 SOLAS Protocol,

1. ADOPTS, in accordance with article VIII(b)(iv) of the Conventi on and article VI of

Protocol proposed and circulated in accordance with article VIII(b)(i) of the Convention and article VI of the 1988 SOLAS Protocol,

1. ADOPTS, in accordance with article VIII(b)(iv) of the Conventi on and article VI of the 1988 SOLAS Protocol, amendments to the appendix to the An nex to the 1988 SOLAS Protocol, the text of which is set out in the Annex to the present resolution;

2. DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention and article VI of the 1988 SOLAS Protocol, that the said amendments shall be deemed to have been accepted on 1 January 2009, unless, prior to that da te, more than one third of the Parties to the 1988 SOLAS Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the worlds merchant fleet have notified their objections to the amendments;

3. INVITES the Parties concerned to note that , in accordance with ar ticle VIII(b)(vii)(2) of the Convention and article VI of the 1988 SOLAS Protocol, the amendments shall enter into force on 1 July 2009, upon their acceptance in accordance with paragraph 2 above;

the Convention and article VI of the 1988 SOLAS Protocol, the amendments shall enter into force on 1 July 2009, upon their acceptance in accordance with paragraph 2 above;

4. RECOMMENDS the Parties concerned to issue certificates complying with the annexed amendments at the first renewal survey after 1 July 2009;

5. REQUESTS the Secretary-General, in c onformity with article VIII(b)(v) of the Convention and article VI of the 1988 SOLAS Prot ocol, to transmit certified copies of the present resolution and the text of the amendmen ts contained in the Annex to all Parties to the 1988 SOLAS Protocol;

6. FURTHER REQUESTS the Secret ary-General to transmit copies of this resolution and its Annex to Members of the Organization, which are not Parties to the 1988 SOLAS Protocol.
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AMENDMENTS TO THE PROTOCOL OF 1988 RELATING TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974, AS AMENDED- 2 -

ANNEX

AMENDMENTS TO THE PROTOCOL OF 1988 RELATING TO THE
INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974,
AS AMENDED

APPENDIX

MODIFICATIONS AND ADDITIONS TO THE APPENDIX TO THE ANNEX TO THE

ANNEX

AMENDMENTS TO THE PROTOCOL OF 1988 RELATING TO THE
INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974,
AS AMENDED

APPENDIX

MODIFICATIONS AND ADDITIONS TO THE APPENDIX TO THE ANNEX TO THE
INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974

Form of Safety Certificate for Passenger Ships

1 The following new paragraphs 2.10 and 2.11 are added after the existing paragraph 2.9 in the section commencing with the words THIS IS TO CERTIFY:

2.10 the ship was/was not 1 subjected to an alternativ e design and arrangements in pursuance of regulation II-2/17 of the Convention;

2.11 a Document of approval of alternative design and arrangements for fire safety is/is not1 appended to this Certificate.

_____

1 Delete as appropriate.

2 In the table of paragraph 2.1.3 in the section commencing w ith the words THIS IS TO CERTIFY, the reference to regulation II-1/13 is replaced by the reference to regulation II-1/184, the words C.1, C.2, C.3 are replaced by P.1, P.2, P.3 and the following footnote is added:

_____

CERTIFY, the reference to regulation II-1/13 is replaced by the reference to regulation II-1/184, the words C.1, C.2, C.3 are replaced by P.1, P.2, P.3 and the following footnote is added:

_____

4 For ships constructed before 1 January 2009, the applicable subdivision notation C.1, C.2 and C.3 should be used.

Form of Safety Construction Certificate for Cargo Ships

3 The following new paragraphs 5 and 6 are ad ded after the existing paragraph 4 in the section commencing with the words THIS IS TO CERTIFY:

5 the ship was/was not 4 subjected to an alternativ e design and arrangements in pursuance of regulation II-2/17 of the Convention;

6 a Document of approval of alternative de sign and arrangements for fire safety is/is not4 appended to this Certificate.

_____

4 Delete as appropriate .

Form of Safety Equipment Certificate for Cargo Ships

4 The following new paragraphs 2.7 and 2.8 are added after the existing paragraph 2.6 in the section commencing with the words THIS IS TO CERTIFY:

2.7 the ship was/was not 4 subjected to an alternativ e design and arrangements in pursuance of regulation II-2/17 of the Convention;

the section commencing with the words THIS IS TO CERTIFY:

2.7 the ship was/was not 4 subjected to an alternativ e design and arrangements in pursuance of regulation II-2/17 of the Convention;

2.8 a Document of approval of alternative design and arrangements for fire safety is/is not4 appended to this Certificate.

_____

4 Delete as appropriate.

Form of Safety Certificate for Cargo Ships

5 The following new paragraphs 2.11 and 2.12 ar e added after the existing paragraph 2.10 in the section commencing with the words THIS IS TO CERTIFY:

2.11 the ship was/was not 4 subjected to an alternativ e design and arrangements in pursuance of regulation II-2/17 of the Convention;

2.12 a Document of approval of alternative design and arrangements for fire safety is/is not4 appended to this Certificate.

_____

4 Delete as appropriate.

2.12 a Document of approval of alternative design and arrangements for fire safety is/is not4 appended to this Certificate.

_____

4 Delete as appropriate.